

24STCV17402 24STCV17402

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-15

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Case Number: 24STCV17402 Hearing Date: September 15, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 15, 2026

Case Name: Fetherolf v. Myers, et al.

Case No.: 24STCV17402

Matter: Motions to Compel Further Responses (2x)

Ruling: The Motions are granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a construction dispute.

On July 12, 2024, Fetherolf Development, Inc. filed the operative Complaint for (1) breach of oral contract, (2) breach of implied contract, (3) quantum meruit, (4) foreclosure of mechanic's lien, and (5) declaratory relief.

On August 19, 2025, a First Amended Cross-Complaint ("FACC") was filed for (1) breach of oral or implied-in-fact contract, (2) negligence, (3) breach of implied warranty, (4) disgorgement of payments per Bus. & Prof. Code §7031, (5) unfair business practices per Bus. & Prof. Code §17200, et seq., (6) recovery on a surety bond, (7) fraud, (8) breach of implied-in-law (quasi) contract, and (9) declaratory relief.

Although the Court previously assigned all discovery motions to a discovery referee, Fetherolf now asserts two Motions to Compel Further Responses to requests for production, set one, from Andrew Dow Myers and David F. Desmond, Jr.

As an initial matter, Fetherolf argues that documents were not properly identified; however, supplemental responses have now been served on this issue and the parties should meet and confer.

The Motions are granted as to RFP nos. 9, 34-42, 44-59, 62, 64, and 67 all of which permissibly seek (a) the identity of subcontractors or (b) communications specifically about the subject project. The objections and limitations are meritless and evasive.

The Motions are granted as to RFP nos. 68, 70, and 73, which seek bids, proposals, plans, and bills for the project from the entities listed in RFP nos. 34-68. This is likewise permissible.

Lastly, the Motions are granted as to RFP no. 76, which seeks documents showing those who worked on the subject project.

In sum, the Motions are granted. Further responses are to be provided as to all RFPs at issue within 20 days.

Andrew Dow Myers and David F. Desmond, Jr. are jointly and severally sanctioned \$1,000, which is to be paid within 30 days.

Moving party to give notice.